

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

SUMMONS WITH NOTICE

LINDA McCLANEY-STEADMAN,

Plaintiff designates QUEENS
County as the place of trial.

Plaintiff,

The basis of venue is:
Place of occurrence

-against-

Plaintiff's residence:
141 Beach 56th Place
Apt No.: 611
Arverne, NY 11692

THE CITY OF NEW YORK; THE
NEW YORK CITY POLICE
DEPARTMENT; NEW YORK CITY
POLICE OFFICER BRIAN J. HURLEY,
Tax Registry No.: 966111; NEW YORK
CITY POLICE SERGEANT PATRICK
J. JACKSON, Tax Registry No.:
unknown; "JOHN DOE(S)/JANE
DOE(S) 1-10," said names being
fictitious, as the actual names and
identifications of said individual police
officers, employed by The City of New
York and/or The New York City Police
Department, are unknown at present,

Defendant(s).

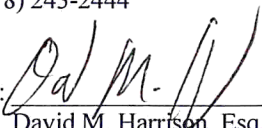
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 10, 2021

DAVID M. HARRISON, ESQ.

Attorney for Plaintiff
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
(718) 243-2444

By: 
David M. Harrison, Esq.

Defendant(s)' address:

THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT, 1 Police Plaza, New York, NY 10038

POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111, c/o 101st Precinct,
1612 Mott Avenue, Far Rockaway, NY 11692

POLICE OFFICER PATRICK J. JACKSON, c/o 101st Precinct, 1612 Mott Avenue, Far Rockaway,
NY 11692

Notice: The nature of this action is: CIVIL RIGHTS/ASSAULT AND BATTERY/PERSONAL
INJURY/VIOLATION OF CONSTITUTIONAL RIGHTS/
VIOLATION OF RIGHTS AS SET FORTH BY
42 U.S.C. § 1983; 42 U.S.C. § 1985; 42 U.S.C. § 1986/
NEGLIGENCE/MALICIOUS PROSECUTION;

The relief sought is: MONEY DAMAGES

Upon your failure to appear, judgment will be taken against you by default, for an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, and which warrants the jurisdiction of this Court, with interest thereupon, and including the costs of this action.

****THIS ACTION FALLS WITHIN ONE OR MORE OF THE EXCEPTIONS SET FORTH IN
CPLR.1602**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

LINDA McCLANEY-STEADMAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK; THE NEW
YORK CITY POLICE DEPARTMENT;
NEW YORK CITY POLICE OFFICER
BRIAN J. HURLEY, Tax Registry No.:
966111; NEW YORK CITY POLICE
SERGEANT PATRICK J. JACKSON,
Tax Registry No.: unknown; "JOHN
DOE(S)/JANE DOE(S) 1-10," said
names being fictitious, as the actual
names and identifications of said
individual police officers, employed
by The City of New York and/or The
New York City Police Department,
are unknown at present,

Defendant(s).

-----X

Plaintiff, by her attorney, **DAVID M. HARRISON, ESQ.**, complaining of the
defendants, respectfully sets forth and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

FIRST: That at all times hereinafter mentioned and prior thereto, the plaintiff,
LINDA McCLANEY-STEADMAN, was and still is an adult resident of the County of
Queens, City and State of New York.

SECOND: That at all times hereinafter mentioned and prior thereto, the defendant, THE CITY OF NEW YORK (hereinafter referred to as “defendant NYC”), was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

THIRD: That at all times hereinafter mentioned and prior thereto, the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as “defendant NYPD”), was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

FOURTH: That at all times hereinafter mentioned and prior thereto, defendant NYPD was established by defendant NYC, and is maintained by that defendant as a constituent department or agency

FIFTH: That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained a Department of Police, as a constituent department or agency of said defendant.

SIXTH: That at all times hereinafter mentioned and prior thereto, defendant NYC has established and maintained a Department of Police commonly known and designated as defendant NYPD, as a constituent department or agency of defendant NYC.

SEVENTH: That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the

services provided by the New York City Police Department.

EIGHTH: That at all times hereinafter mentioned and prior thereto, defendant NYC was and is a municipal entity created and authorized under the laws of the State of New York. Said defendant was and is authorized to maintain a police department, commonly known and designated as defendant NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant NYC assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by defendant NYPD.

NINTH: That at all times hereinafter mentioned and prior thereto, defendant NYC, its agents, servants, employees, representatives, and others on said defendant's behalf, operated, supervised, directed, maintained, monitored, oversaw and controlled defendant NYPD, including all police officers thereof.

TENTH: That at all times hereinafter mentioned and prior thereto, the defendant, NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111 (hereinafter referred to as "defendant HURLEY"), was employed by defendant NYC, as a police officer with defendant NYPD.

ELEVENTH: That at all times hereinafter mentioned and prior thereto, the defendant, NEW YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: Unknown (hereinafter referred to as "defendant JACKSON") was employed by defendant NYC, as a police sergeant/police officer with defendant NYPD.

TWELFTH: That at all times hereinafter mentioned and prior thereto, the defendants, "JOHN DOE(S)/JANE DOE(S) 1-10, said names being fictitious, as the

actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, are unknown at present (hereinafter referred to as "JOHN DOE(S)/JANE DOE(S)"), were employed by defendant NYC, as police officers with defendant NYPD.

THIRTEENTH: That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, pursuant to the applicable provisions of the General Municipal Law, and timely pursuant to the applicable provisions set forth by New York State Executive Orders § § § § § 202.8; 202.14; 202.28; 202.38; 202.48 and 202.55, which Notice of Claim was served and filed within ninety (90) days following the expiration of the tolling provision set forth by said Executive Orders, and before the commencement of the action, and this action was commenced against defendants NYC, NYPD, HURLEY, JACKSON, and JOHN DOE(S)/JANE DOE(S), within one year and ninety days after the date of accrual of this action.

FOURTEENTH: That a Notice of Claim was duly served and filed with the office of the Comptroller/Comptroller of the City of New York, which Notice of Claim was served and filed within ninety (90) days following the expiration of the tolling provision set forth by New York State Executive Orders § § § § § 202.8; 202.14; 202.28; 202.38; 202.48 and 202.55, and before the commencement of the action, and this action was commenced within one year and ninety days after the accrual of this cause of action, and as such, plaintiff has satisfied all conditions precedent to lawful commencement of the within action against defendants NYC, NYPD, HURLEY, JACKSON, and JOHN DOE(S)/JANE DOE(S).

FIFTEENTH: That pursuant to the applicable provisions of the General Municipal Law, the plaintiff, LINDA McCLANEY-STEADMAN appeared for a 50-h hearing conducted by and/or on behalf of defendants NYC, NYPD, HURLEY, JACKSON, and JOHN DOE(S)/JANE DOE(S) prior to the time of commencement of the subject action.

SIXTEENTH: That the defendants, NYC, NYPD, HURLEY, JACKSON, and JOHN DOE(S)/JANE DOE(S), have failed and refused to pay and/or adjust the claim within the statutory period of time following the happening of the event upon which the claim is based.

SEVENTEENTH: That this action has been commenced within one year and/or one year and ninety days after the happening of the event upon which the claim is based.

EIGHTEENTH: That at all times hereinafter mentioned, defendant HURLEY was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

NINETEENTH: That at all times hereinafter mentioned, defendant HURLEY was acting under color of law and authority as a police officer with the Police Department of The City of New York.

TWENTIETH: That at all times hereinafter mentioned, defendant HURLEY was acting within the scope of his employment as a police officer with defendant NYPD, pursuant to his employment with defendant NYC.

TWENTY-FIRST: That at all times hereinafter mentioned, defendant HURLEY was acting under color of law and authority as a police officer with defendant NYPD, pursuant to his employment with defendant NYC.

TWENTY-SECOND: That at all times hereinafter mentioned, defendant JACKSON was acting within the scope of his employment as police sergeant/police officer with the Police Department of The City of New York.

TWENTY-THIRD: That at all times hereinafter mentioned, defendant JACKSON was acting under color of law and authority as a police sergeant/police officer with the Police Department of The City of New York.

TWENTY-FOURTH: That at all times hereinafter mentioned, defendant JACKSON was acting within the scope of his employment as police sergeant/police officer with defendant NYPD, pursuant to his employment with defendant NYC.

TWENTY-FIFTH: That at all times hereinafter mentioned, defendant JACKSON was acting under color of law and authority as a police sergeant/police officer with defendant NYPD, pursuant to his employment with defendant NYC.

TWENTY-SIXTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) were acting within the scope of their employment as police officers with the Police Department of The City of New York.

TWENTY-SEVENTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) are acting under color of law and authority as police officers with the Police Department of The City of New York.

TWENTY-EIGHTH: That at all times hereinafter mentioned, defendants JOHN DOE(S)/JANE DOE(S) were acting within the scope of their employment as police officers with defendant NYPD, pursuant to their employment with defendant NYC.

TWENTY-NINTH: That at all times hereinafter mentioned, defendants JOHN

DOE(S)/JANE DOE(S) were acting under color of law and authority as police officers with defendant NYPD, pursuant to their employment with defendant NYC.

THIRTIETH: That at all times hereinafter mentioned, defendant NYC employed defendant HURLEY.

THIRTY-FIRST: That at all times hereinafter mentioned, defendant NYC employed defendant HURLEY, in the capacity of a police officer with defendant NYPD.

THIRTY-SECOND: That at all times hereinafter mentioned, defendant NYC employed defendant JACKSON.

THIRTY-THIRD: That at all times hereinafter mentioned, defendant NYC employed defendant JACKSON, in the capacity of a police sergeant/police officer with defendant NYPD.

THIRTY-FOURTH: That at all times hereinafter mentioned, defendant NYC employed defendants JOHN DOES/JANE DOES.

THIRTY-FIFTH: That at all times hereinafter mentioned, defendant NYC employed defendants JOHN DOE(S)/JANE DOE(S), in their capacity as police officers with defendant NYPD.

THIRTY-SIXTH: That at all times hereinafter mentioned, defendants HURLEY, JACKSON and JOHN DOE(S)/JANE DOE(S) were acting pursuant to their capacity as employees of defendants NYC and/or NYPD.

THIRTY-SEVENTH: That at all times hereinafter mentioned, defendants HURLEY, JACKSON and JOHN DOE(S)/JANE DOE(S) were acting pursuant to their capacity as employees/police officers of defendant NYC and/or NYPD. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were

taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants, employees, and/or representatives of defendants NYC and/or NYPD.

THIRTY-EIGHTH: On May 8, 2020, at approximately 10:00 P.M, upon Regina Avenue, at or near premises commonly known and designated as 22-06 Regina Avenue, in the County of Queens, City and State of New York, defendant HURLEY, and said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), wrongfully assaulted and battered the plaintiff herein; and thereafter, defendants HURLEY and JOHN DOE(S)/JANE DOES) wrongfully arrested, imprisoned, detained, abused, assaulted and battered the plaintiff, without any right or grounds thereof.

THIRTY-NINTH: Defendants HURLEY and said defendant's partner, A police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), upon arriving on Regina Avenue, at or near premises commonly known and designated as 22-06 Regina Avenue, in the County of Queens, City and State of New York, immediately handcuffed the plaintiff's wrists and shackled/handcuffed plaintiff's ankles, while falsely accusing the plaintiff of leaving the scene of a motor vehicle accident which defendant HURLEY and said defendant's partner identified herein, wrongfully and falsely asserted had occurred on Beach Channel Drive and Horton Avenue, in the County of Queens, City and State of New York. Plaintiff LINDA McCLANEY-STEADMAN was accordingly wrongfully handcuffed/shackled by her wrists and ankles.

FORTIETH: Defendant HURLEY and said defendant's partner, a police

officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), failed to read the plaintiff her Miranda rights in connection with their handcuffing and shackling of the plaintiff;

FORTY-FIRST: That despite the shackling of plaintiff's ankles, defendant Hurley 1 and said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), forced plaintiff to walk, which resulted in plaintiff falling to the ground, and thereafter within said defendants' police vehicle while plaintiff was lawfully attempting to enter said vehicle, during which time plaintiff's wrists were handcuffed, with plaintiff's ankles shackled.

FORTY-SECOND: Defendant HURLEY and said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), upon plaintiff falling within defendants' police vehicle, yelled at the plaintiff to "shut up" and "get your ass up," while also telling the plaintiff "stop playing with us, Linda."

FORTY-THIRD: Defendant HURLEY and said defendant's partner, a police officer whose name and identification is unknown (and thereby included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), upon plaintiff falling within defendants' police vehicle, committed assault and battery upon the plaintiff, LINDA McCLANEY-STEADMAN, by forcefully pulling her arms arms back (while plaintiff was in handcuffs), and by physically pushing, pulling and using excessive force on the plaintiff's neck, right and left shoulders, arms, and

lower right and left extremities.

FORTY-FOURTH: Defendant HURLEY and said defendant's partner, a police officer whose name and identification is unknown (and thereby included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), upon plaintiff falling within defendants' police vehicle, refused to remove the handcuffs from plaintiff's wrists, as well as the shackles/handcuffs from plaintiff's ankles, when plaintiff attempted to explain to said defendants that if they would "uncuff her ankles" she would be able to help herself get up from her fall in defendants' said police vehicle.

FORTY-FIFTH: That despite additional police officers arriving at the scene of plaintiff's wrongful arrest, detention and imprisonment (thereby included as defendants JOHN DOE(S)/JANE DOE(S) herein), following the arrival of defendant HURLEY and said defendant's partner, said additional police officers failed to help the plaintiff.

FORTY-SIXTH: That upon defendant HURLEY and said defendant's partner, whose name and identification is unknown (and thereby included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), perpetrating/committing an assault and battery upon the plaintiff, LINDA McCLANEY-STEADMAN, by violently pulling her arms back (while plaintiff was in handcuffs), and by physically pushing, pulling and using excessive force on the plaintiff's neck, right and left shoulders, arms, and lower right and left extremities, plaintiff screamed for help, to no avail, and complained of physical pain.

FORTY-SEVENTH: That upon hearing plaintiff's complaints of physical pain, defendant HURLEY, upon information and belief, proceeded to contact defendant

JACKSON, who in turn instructed defendant HURLEY and said defendant's partner referred to herein, to take plaintiff to the hospital. Accordingly, plaintiff was placed on a gurney, still cuffed/shackled by her wrists and ankles, and was taken by EMS personnel to the hospital/medical facility commonly known and designated as St. John's Hospital, in the County of Queens, City and State of New York.

FORTY-EIGHTH: That while at St. John's Hospital, the plaintiff was repeatedly threatened, pressured and warned by defendant HURLEY; said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those defendants identified as JOHN DOE(S)/JANE DOE(S) herein), and, upon information and belief, a doctor, nurse or medical/healthcare worker employed by or operating on behalf of St. John's Hospital (whose name and identification is unknown) that plaintiff would be forcibly administered an injection of an unknown substance, while the plaintiff forcibly remained upon a stretcher, with her ankles shackled, and wrists handcuffed behind her back.

FORTY-NINTH: That upon refusing her consent for the injection at said hospital/medical facility commonly known and designated as St. John's Hospital, in the County of Queens, City and State of New York, plaintiff remained unlawfully imprisoned and detained by defendant HURLEY and said defendant's partner, whose name and identification is unknown (and thereby is included as one of those police officers identified herein as JOHN DOE(S)/JANE DOE(S) herein), as plaintiff was taken from said hospital/medical facility, with her ankles still shackled, and her wrists still handcuffed behind her back, and was forcibly placed in a police motor vehicle by defendant Hurley and said defendant's partner referred to herein. Plaintiff was falsely

and inexplicably taken by said defendants to “Central Booking” at defendant NYPD’s 112th Precinct, located in the County of Queens, City and State of New York.

FIFTIETH: That upon arriving at defendant NYPD’s 112th Precinct, plaintiff remained at said precinct for approximately ten minutes or left. Plaintiff, while her ankles and wrists remained shackled/handcuffed, was thereafter forced back into said police motor vehicle by defendants HURLEY and/or said defendant’s partner, whose name and identification is unknown (and thereby is included as one of those police officers identified herein as defendants JOHN DOE(S)/JANE DOE(S) herein), and taken to defendant NYPD’s 101st Precinct, located in the County of Queens, City and State of New York.

FIFTY-FIRST: That upon arriving at defendant NYPD’s 101st Precinct, the handcuffs and ankle shackles were removed, with plaintiff thereafter provided with a “ticket”/citation for leaving the scene of the occurrence. Plaintiff was thereafter allowed to leave, with no criminal charges assessed against her, and with no criminal court action scheduled, despite the wrongful, unlawful and improper arrest, detainment and imprisonment of plaintiff by defendant HURLEY and said defendant’s partner, a police officer referred to herein, as well as said other police officers who arrived at the scene but failed to intercede.

FIFTY-SECOND: That plaintiff learned thereafter that defendant HURLEY had falsely and wrongfully referred to plaintiff as being “intoxicated upon observation” in a police accident report, referring to a motor vehicle accident which did not occur in the location referenced within said report, and which did not occur in the manner set forth by defendant HURLEY.

FIFTY-THIRD: That defendant HURLEY's assertion that plaintiff was "intoxicated upon observation" was plainly false and malicious, and meant as an attempt to justify the knowingly wrongful and improper actions taken by defendant HURLEY and said defendant's partner, a police whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/ JANE DOE(S) herein), as plaintiff was never charged by defendants NYC and/or NYPD with driving while intoxicated.

FIFTY-FOURTH: Said arrest, detention, imprisonment, assault and battery perpetrated upon the plaintiff, LINDA McCLANEY-STEADMAN, were caused by the defendants, their agents, servants, employees, representatives, and others acting upon defendants' behalf, without probable cause and/or justification;

FIFTY-FIFTH: Defendants, through agents, servants, employees, representatives, and others acting upon defendants' behalf, acted in bad faith and without probable cause, in committing the aforementioned arrest, detention, imprisonment, assault and battery of the plaintiff, LINDA McCLANEY-STEADMAN.

FIFTY-SIXTH: Defendants, their agents, servants, employees, representatives and others acting upon defendants' behalf, intended to confine the plaintiff, LINDA McCLANEY-STEADMAN, in that plaintiff was conscious of the confinement. Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

FIFTY-SEVENTH: At the time of her unlawful arrest, detention, and imprisonment, plaintiff LINDA McCLANEY-STEADMAN had not committed any illegal act or crime.

FIFTY-EIGHTH: At the time of her unlawful arrest, detention, and

imprisonment, plaintiff LINDA McCLANEY-STEADMAN, defendants knew, or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest, detention and imprisonment were false and without probable cause.

FIFTY-NINTH: That said false arrest, detention and imprisonment caused the plaintiff, LINDA McCLANEY-STEADMAN, to suffer serious, severe and permanent personal injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to her reputation.

SIXTIETH: Plaintiff LINDA McCLANEY-STEADMAN was told she was being arrested for leaving the scene of an accident, which did not occur at or in the manner asserted by defendant HURLEY and said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOES herein); and with plaintiff having ultimately been released from police custody without any criminal charges having been filed, and without any resultant scheduling of any appearance in Criminal Court.

SIXTY-FIRST: Plaintiff LINDA McCLANEY-STEADMAN was in police custody, was unlawfully detained and falsely imprisoned for several hours by police officers employed by defendants NYC and NYPD, including defendants, HURLEY, JACKSON, and defendant HURLEY's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein).

SIXTY-SECOND: Plaintiff LINDA McCLANEY-STEADMAN was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and

seizure was without due process of law and was done to deprive the plaintiff of her rights as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SIXTY-THIRD: It is alleged that defendants NYC, NYPD, HURLEY, JACKSON and JOHN DOE(S)/JANE DOE(S) failed to investigate the facts, and therefore, maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated the plaintiff, LINDA McCLANEY-STEADMAN, in violation of her constitutional rights.

SIXTY-FOURTH: As a direct result of defendants' actions, plaintiff LINDA McCLANEY-STEADMAN suffered and continues to suffer mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to her reputation, some of which may be permanent.

SIXTY-FIFTH: Plaintiff LINDA McCLANEY-STEADMAN suffered greatly and was emotionally traumatized by this excessive detention and imprisonment.

SIXTY-SIXTH: That the false arrest, detention and imprisonment of the plaintiff, LINDA McCLANEY-STEADMAN, arose without any legitimate cause or justification on the part of defendants herein, and were intentional, malicious, reckless and in bad faith.

SIXTY-SEVENTH: As a direct and proximate result of defendants' herein referenced actions, plaintiff LINDA McCLANEY-STEADMAN was deprived of her rights, privileges and immunities under the Fourth and Fourteenth Amendment to the United States Constitution and the laws of the City and State of New York.

SIXTY-EIGHTH: As a result of the foregoing, the plaintiff, LINDA

McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; “JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

SIXTY-NINTH: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

SEVENTIETH: On May 8, 2020, at approximately 10:00 P.M., while the plaintiff, LINDA McCLANEY-STEADMAN, was lawfully situated upon Regina Avenue, at or near premises commonly known and designated as 22-06 Regina Avenue, in the County of Queens, City and State of New York, the plaintiff was assaulted and battered by police offices employed by defendants NYC and/or NYPD, including defendants HURLEY and JOHN DOE(S)/JANE DOE(S).

SEVENTY-FIRST: On May 8, 2020, at approximately 10:00 P.M., while the plaintiff, LINDA McCLANEY-STEADMAN, was lawfully situated upon Regina

Avenue, at or near premises commonly known and designated as 22-06 Regina Avenue, in the County of Queens, City and State of New York, defendant HURLEY and said defendant's partner, a police officer whose name and identification is unknown (and thereby is included as one of those police officers identified as defendants JOHN DOE(S)/JANE DOE(S) herein), in their capacity as police officers employed by defendants NYC and/or NYPD, violently pulled plaintiff's arms back (while plaintiff was in handcuffs), and physically pushed, pulled and used excessive force on the plaintiff's neck, right and left shoulders, arms, and lower right and left extremities, all without justification, thereby committing assault and battery upon the plaintiff.

SEVENTY-SECOND: That defendants' said wrongful actions herein referenced were perpetrated upon the plaintiff, LINDA McCLANEY-STEADMAN, without any incitement or provocation on the part of the plaintiff.

SEVENTY-THIRD: As a result of the above-mentioned unprovoked assault and battery, the plaintiff, LINDA McCLANEY-STEADMAN was caused to sustain serious, severe and permanent personal injuries; was injured internally and externally; became sick, sore, lame and disabled; and was caused to suffer, and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer pain and discomfort; was caused to obtain medical care and attention in an attempt to cure herself of said injuries.

SEVENTY-FOURTH: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK

CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; “JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

SEVENTY-FIFTH: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

SEVENTY-SIXTH: The actions of defendants heretofore described constituted an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff LINDA McCLANEY-STEADMAN’s civil rights.

SEVENTY-SEVENTH: Defendants deprived the plaintiff, LINDA McCLANEY-STEADMAN, of her liberty, in violation of her civil and constitutional rights, as set forth in the U.S. Constitution; 42 U.S.C. § 1983; 42 U.S.C. § 1985; 42 U.S.C. § 1986; and the Constitution of the State of New York.

SEVENTY-EIGHTH: Defendants, by their actions, violated the civil and constitutional rights of the plaintiff, LINDA McCLANEY-STEADMAN, as set forth in the U.S. Constitution; 42 U.S.C. 1983; 42 U.S.C. § 1985; 42 U.S.C. § 1986; and the

Constitution of the State of New York.

SEVENTY-NINTH: Defendants' actions were taken under the color of law and would not have existed but for said defendants using their official power.

EIGHTIETH: The supervisors and policy making officers of defendants NYC and NYPD, as a matter of policy, have failed to take steps to terminate the above-detailed practices, and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

EIGHTY-FIRST: Defendants NYC and NYPD have failed to properly or effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

EIGHTY-SECOND: Defendants NYC and NYPD have sanctioned the above-described policy and practices through the deliberate indifference to the effect of said policy upon the constitutional and civil rights of the plaintiff, LINDA McCLANEY-STEADMAN, and others similarly situated.

EIGHTY-THIRD: Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

EIGHTY-FOURTH: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN, has suffered serious and severe emotional distress, personal injuries, and loss to her reputation

EIGHTY-FIFTH: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK

CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; “JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FOURTH CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

EIGHTY-SIXTH: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

EIGHTY-SEVENTH: Defendants NYC and/or NYPD hired and retained in its employ police officers, including defendants HURLEY, JACKSON and JOHN DOES/JANE DOES, with knowledge that said police officers lacked the experience to be employed by the aforementioned defendants, and therefore, were unfit to be police officers.

EIGHTY-EIGHTH: Defendants NYC and/or NYPD hired and retained in its employ police officers, including defendants HURLEY, JACKSON and JOHN DOES/JANE DOES, with knowledge that said police officers lacked the department to be employed by the aforementioned defendants, and were, therefore, unfit to be police officers.

EIGHTY-NINTH: Defendants NYC and/or NYPD hired and retained in

its employ police officers, including defendants HURLEY, JACKSON and JOHN DOES/JANE DOES, with knowledge that said police officers lacked the experience to be Employed by the aforementioned defendants, and, therefore, were unfit to be police officers.

NINETIETH: Defendants NYC and/or NYPD hired and retained in its employ police officers, including defendants HURLEY, JACKSON and JOHN DOES/JANE DOES, with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

NINETY-FIRST: As a result of the foregoing, plaintiff LINDA McCLANEY-STEADMAN has suffered serious and severe emotional distress, personal injuries, and loss to her reputation.

NINETY-SECOND: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; “JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A FIFTH CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

NINETY-THIRD: Plaintiff LINDA McCLANEY-STEADMAN repeats,
reiterates and realleges each and every allegation contained in the paragraphs above, with
the same force and effect as if fully set forth herein.

NINETY-FOURTH: Defendants, their agents, servants and/or employees
negligently, carelessly and recklessly performed their police duties in that they failed to
exercise such care in the performance of their police duties as a reasonably prudent
police officer would have used under similar circumstances.

NINETY-FIFTH: That the aforementioned occurrences: to wit: the false
arrest, detainment, unlawful arrest, unlawful and false imprisonment of the plaintiff,
LINDA McCLANEY-STEADMAN; the assault and battery committed by defendants
against the plaintiff herein, thereby causing plaintiff physical injury; pain and
suffering; the violation of plaintiff's civil and constitutional rights; and the resulting
injuries to the mind and the body of the plaintiff therefrom, were caused solely by
reason of the negligence of the defendants, their agents, servants, employees,
representatives and others acting on behalf of the defendants, without any negligence
on the part of the plaintiff, LINDA McCLANEY-STEADMAN.

NINETY-SIXTH: As a result of the foregoing, the plaintiff, LINDA
McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF
NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY
POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK
CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown;

“JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SIXTH CAUSE OF ACTION
IN BEHALF OF THE PLAINTIFF, LINDA
McCLANEY-STEADMAN:**

NINETY-SEVENTH: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

NINETY-EIGHTH: Defendants’ conduct towards Plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decadency tolerated by the average member of the community.

NINETY-NINTH: Defendants acted with the desire to cause the plaintiff, LINDA McCLANEY-STEADMAN, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

ONE-HUNDREDTH: Defendants acted with utter disregard of the consequences of their actions.

ONE-HUNDRED AND FIRST: As a result of the foregoing, plaintiff LINDA McCLANEY-STEADMAN has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

ONE-HUNDRED AND SECOND: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; "JOHN DOE(S)/JANE DOE(S) 1-10," said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR A SEVENTH CAUSE OF
ACTION IN BEHALF OF THE PLAINTIFF,
LINDA McCLANEY-STEADMAN:**

ONE-HUNDRED AND THIRD: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

ONE-HUNDRED AND FOURTH: Upon information and belief, defendants NYC and NYPD, through defendants HURLEY, JACKSON and JOHN DOE(S)/JANE DOE(S), employed by The City of New York and The New York City Police Department, in their official capacity and individual capacity and assigned to the 101st Precinct, by their conduct and under color of state law, it is believed that said defendant officers each had opportunity to intercede on behalf of the plaintiff, LINDA McCLANEY-STEADMAN, to prevent said excessive use of force but due to their

intentional conduct or deliberate indifference declined or refused to do so.

ONE-HUNDRED AND FIFTH: As a result of the foregoing, plaintiff LINDA McCLANEY-STEADMAN has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

ONE-HUNDRED AND SIXTH: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; "JOHN DOE(S)/JANE DOE(S) 1-10," said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

**AS AND FOR AN EIGHTH CAUSE OF
ACTION IN BEHALF OF THE PLAINTIFF,
LINDA McCLANEY-STEADMAN:**

ONE-HUNDRED AND SEVENTH: Plaintiff LINDA McCLANEY-STEADMAN repeats, reiterates and realleges each and every allegation contained in the paragraphs above, with the same force and effect as if fully set forth herein.

ONE-HUNDRED AND EIGHTH: Defendants HURLEY and JACKSON, employees of defendants NYC and NYPD, pursuant to their official capacity as police officers, have maliciously caused a prosecution by setting forth information in

a Police Accident Report, relating to a motor vehicle accident involving the plaintiff on May 8, 2020, which defendants HURLEY and JACKSON knew were false; and which were set forth as a means to justify the wrongful and improper actions perpetrated by defendants under the plaintiff herein

ONE-HUNDRED AND NINTH: Plaintiff has not committed any illegal acts.

ONE-HUNDRED AND TENTH: Plaintiff has never given defendants, their agents, servants employees, representatives, and others acting on behalf of defendants NYC and/or NYPD, to believe that she committed the illegal acts set forth within the Police Accident Report relating to a motor vehicle accident involving the plaintiff on May 8, 2020, set forth by defendants HURLEY and JACKSON.

ONE-HUNDRED AND ELEVENTH: Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

ONE-HUNDRED AND TWELFTH: As a result of the foregoing malicious prosecution, plaintiff LINDA McCLANEY-STEADMAN, suffered and continues to suffer substantial and permanent damages.

ONE-HUNDRED AND THIRTEENTH: As a result of the foregoing, plaintiff LINDA McCLANEY-STEADMAN has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation and soreness.

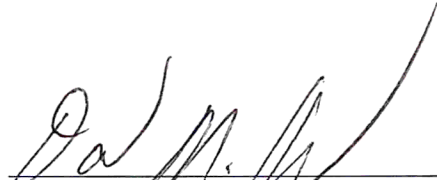
ONE-HUNDRED AND FOURTEENTH: As a result of the foregoing, the plaintiff, LINDA McCLANEY-STEADMAN demands judgment against the defendants, THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICER BRIAN J. HURLEY, Tax Registry No.: 966111; NEW

YORK CITY POLICE SERGEANT PATRICK J. JACKSON, Tax Registry No.: unknown; “JOHN DOE(S)/JANE DOE(S) 1-10,” said names being fictitious, as the actual names and identifications of said individual police officers, employed by The City of New York and/or The New York City Police Department, in an amount which exceeds the jurisdictional limits of all lower courts which otherwise have jurisdiction, and which warrants the jurisdiction of this Court.

WHEREFORE, the plaintiff, LINDA McCLANEY-STEADMAN, hereby demands judgment against the defendants herein, on the First Cause of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Second Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; together with costs and disbursements of this action; on the Third Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Fourth Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Fifth Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

warrants the jurisdiction of this Court; on the Sixth Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Seventh Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; on the Eighth Cause of Action, the plaintiff, LINDA McCLANEY-STEADMAN, demands judgment against the defendants herein in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; together with costs and disbursements of this action.

Dated: Brooklyn, New York
May 10, 2021



DAVID M. HARRISON, ESQ.

Attorney for Plaintiff
LINDA McCLANEY-STEADMAN
Office & P.O. Address
48 Willoughby Street
Brooklyn, NY 11201
Tel: (718) 243-2109
Fax: (718) 243-1144
E-mail: dharrison@pankinlaw.com

ATTORNEY VERIFICATION

STATE OF NEW YORK }

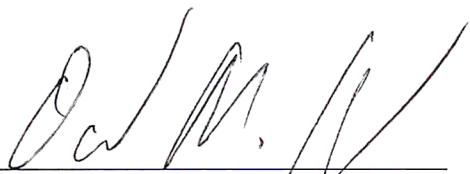
ss.:

COUNTY OF NEW YORK }

The undersigned, an attorney admitted to practice in the Courts of New York State, hereby affirms, subject to penalties of perjury: DAVID M. HARRISON, ESQ., the attorney of record for the plaintiff in the within action; has read the foregoing COMPLAINT, and knows the contents thereof; same is true to affirmant's own knowledge, except as to the matters therein alleged on information and belief, and that as to those matters alleged on information and belief, affirmant believes them to be true. The reason this verification is made by affirmant, and not plaintiff, is because the plaintiff does not reside in the county wherein counsel has its office to wit, the county of Kings. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Based upon the contents of my file.

The undersigned, an attorney admitted to practice in the Courts of New York State, and the attorney for the plaintiff in this action, LINDA McCLANEY-STEADMAN, hereby certifies, pursuant to Sec, 130-1.1-a of the Rules of the Chief Administrator (NYCRR) that to the best of my knowledge, information and belief, after an inquiry reasonable under the circumstances, that the presentation of the Complaint in this action, or the contentions therein, are not frivolous as defined in subsection (c) of Sec. 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: Brooklyn, New York
May 10, 2021



DAVID M. HARRISON, ESQ.

SUPREME COURT OF NEW YORK
COUNTY OF QUEENS

Index No.:

LINDA McCLANEY-STEADMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK; THE NEW
YORK CITY POLICE DEPARTMENT;
NEW YORK CITY POLICE OFFICER
BRIAN J. HURLEY, Tax Registry No.:
966111; NEW YORK CITY POLICE
SERGEANT PATRICK J. JACKSON,
Tax Registry No.: unknown; "JOHN
DOE(S)/JANE DOE(S) 1-10," said
names being fictitious, as the actual
names and identifications of said
individual police officers, employed
by The City of New York and/or The
New York City Police Department,
are unknown at present,

Defendant(s).

SUMMONS WITH NOTICE & VERIFIED COMPLAINT

DAVID M. HARRISON, ESQ.

Attorney for the Plaintiff

LINDA McCLANEY-STEADMAN

Office & P.O. Address

48 Willoughby Street

Brooklyn, New York 11201

(718) 243-2109

PLEASE TAKE NOTICE:

☐ Notice of Entry

that the within is a (certified) true copy of Order
the clerk of the within named court on

duly entered in the office of

☐ Notice of Settlement

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court, at
on 20 at M.